

1 ENGROSSED SENATE
2 BILL NO. 1946

By: Murdock of the Senate

3 and

4 Moore of the House

5
6 An Act relating to alcoholic beverages; amending 37A
7 O.S. 2021, Section 2-103, as amended by Section 5,
8 Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025,
9 Section 2-103), which relates to distiller licenses;
10 increasing certain number of allowed noncontiguous
11 locations allowed for certain licensee; allowing
12 certain licensee to sell certain sample spirits at
13 certain public events; allowing certain spirits to be
14 sold in certain controlled area; establishing certain
15 area to be considered certain distillery premises;
16 updating statutory language; and providing an
17 effective date.

18 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

19 SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-103, as
20 amended by Section 5, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025,
21 Section 2-103), is amended to read as follows:

22 Section 2-103. A. A distiller license shall authorize the
23 holder thereof:

24 1. To manufacture, bottle, package and store spirits on
licensed premises;

2. To sell spirits in this state to licensed wholesalers and
manufacturers only;

1 3. To sell spirits out of this state to qualified persons; to
2 purchase from licensed distillers and rectifiers in this state, and
3 import spirits from without this state for manufacturing purposes in
4 accordance with federal laws and regulations;

5 4. To serve free samples of spirits produced only by the
6 licensee to visitors twenty-one (21) years of age and older. For
7 purposes of this section, no visitor may sample more than a total of
8 three (3) fluid ounces of spirits per day. The distiller shall
9 restrict the distribution and consumption of spirits samples to an
10 area within the licensed premises designated by the distiller. A
11 current floor plan that includes the designated sampling area shall
12 be on file with the ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE)
13 Commission. No visitor under twenty-one (21) years of age shall be
14 permitted to enter the designated sampling area when samples are
15 being distributed and consumed. Samples of spirits served by a
16 distiller under this section shall not be considered a sale of
17 spirits within the meaning of Article XXVIII-A of the Oklahoma
18 Constitution or Section 1-103 of this title; provided, such samples
19 of spirits shall be considered removed or withdrawn from the
20 distillery for use or consumption within the meaning of Section 5-
21 110 of this title for excise tax determination and reporting
22 requirements;

23 5. To sell spirits produced by the licensee for either on-
24 premises or off-premises consumption to consumers on the licensed

1 distillery premises or in an area controlled by the licensee located
2 contiguous to the licensed distillery premises and at ~~one (1)~~
3 ~~location~~ two locations controlled by the licensee located in the
4 same ~~county~~ state as the licensed distillery premises but not
5 contiguous to the licensed distillery premises. Spirits offered for
6 sale by the Oklahoma licensed distiller will have been sold to and
7 shipped to an Oklahoma licensed wine and spirits wholesaler and then
8 made available for purchase by the Oklahoma licensed distiller for
9 sale; and

10 6. To sell spirits and sample spirits at public events such as
11 trade shows or festivals. Products offered for sale by the Oklahoma
12 licensed distiller will have been sold to and shipped to an Oklahoma
13 licensed wine and spirits wholesaler and then made available for
14 purchase by the Oklahoma licensed distiller. Spirits offered for
15 on-premises consumption shall be in an area controlled by the
16 distillery and such area shall be considered the distillery
17 premises.

18 B. Spirits sold pursuant to paragraphs 5 and 6 of subsection A
19 of this section shall not exceed fifteen thousand (15,000) gallons
20 per calendar year in combination.

21 C. Spirits sold pursuant to paragraphs 5 and 6 of subsection A
22 of this section shall be a final sale. Licensed distillers may
23 offer for sale ~~non-alcoholic~~ nonalcoholic substances which may be
24 added to spirits by the consumer after final sale. Substances used

1 for on-premises consumption shall be ~~non-alcoholic~~ nonalcoholic in
2 nature and shall not be considered part of the manufacturing
3 process.

4 SECTION 2. This act shall become effective November 1, 2026.

5 Passed the Senate the 25th day of March, 2026.

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Presiding Officer of the Senate

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9 Passed the House of Representatives the ____ day of _____,
10 2026.

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Presiding Officer of the House
of Representatives

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